MAYBROOK AGGREGATES LIMITED v HELMSWORTH PLANT HIRE LIMITED

Claim No. HT-2026-000142

ADVICE ON THE MERITS AND QUANTUM

Counsel: Harriet Stanford, Eldon Chambers

Instructing Solicitors: Whitfield Carter LLP (ref: WC-00196 / TG)

Date: 7 April 2026

Introduction

1. I am asked to advise Maybrook Aggregates Limited ("Maybrook") on the merits and quantum of its claim against Helmsworth Plant Hire Limited ("Helmsworth") arising out of the supply and hire of a HelmCrush HC-450 mobile crushing and screening plant (the "Plant") under an agreement dated 14 March 2025 (the "Agreement"). I have read the Particulars of Claim, the Defence, the Reply, the contemporaneous documents and the draft report of Mr David Penrith.

2. In short, my view is that Maybrook has a strong claim on liability and that, subject to the limitation of liability point and to causation of the lost-profit head, it is likely to recover a substantial proportion of the £1,420,000 claimed. I assess overall prospects of establishing liability at around 75%.

Liability – breach of contract

3. The Agreement contains, at clause 7.1, an express term that the Plant would be of satisfactory quality and fit for the purpose of continuous primary and secondary crushing of quarried limestone. That purpose was plainly made known to Helmsworth. A plant which suffers four separate failures in its first four months of operation, culminating in the destruction of the jaw crusher, is on any view not of satisfactory quality.

4. Clause 7.3 is more contentious. Maybrook reads it as an unqualified warranty that the Plant was capable of 320 tonnes per hour. Helmsworth contends the figure was a capability under "standard test conditions". The clause as drafted contains no such qualification, and the same figure was repeated without qualification in the data sheet. I consider Maybrook has the better of this argument, although the throughput head is in any event secondary to the failure head.

5. The real battleground is causation: whether the failures were caused by inherent defects (Maybrook's case) or by operator misuse — oversized/contaminated feed and ignoring alarms (Helmsworth's case). This turns substantially on Mr Penrith's evidence, considered below.

Misrepresentation

6. The throughput and "fit for continuous quarry duty" statements in the 6 February 2025 quotation are actionable representations. The section 2(1) Misrepresentation Act 1967 claim is useful because it reverses the burden of proof: Helmsworth must show it had reasonable grounds for the statements. Given the Plant's actual performance, that will be difficult. The

measure of damages under section 2(1) is, however, the tortious measure, and care is needed not to double-count with the contractual claim.

The expert evidence

7. Mr Penrith's preliminary conclusion is that the four failures were caused by an under-specified toggle and main-shaft bearing assembly and a screen deck of inadequate plate thickness for quarry duty — i.e. inherent defects — and not by misuse. Critically, he finds no metallurgical evidence of tramp-metal damage and confirms that Maybrook's scalping screen and feed records are consistent with in-specification feed. If this evidence is accepted, Helmsworth's causation defence largely falls away.

8. Helmsworth has not yet served expert evidence. If the Court directs a single joint expert, Mr Penrith is well placed. I would resist any attempt to characterise the failures as "wear and tear".

The limitation of liability – clause 14.2

9. Clause 14.2 purports to cap Helmsworth's liability at the hire charges paid in the preceding 12 months (£222,000) and to exclude loss of profit. This is the single most significant threat to the value of the claim. Its effectiveness depends on (a) construction — whether it covers the breaches in issue, and in particular a repudiatory breach; and (b) reasonableness under section 11 and Schedule 2 of the Unfair Contract Terms Act 1977.

10. On reasonableness, the relevant factors (relative bargaining strength, whether the term was negotiated, the availability of insurance, and the disproportion between the cap and the foreseeable loss) point in Maybrook's favour, but the parties were both commercial entities and the clause is not unusual in the plant-hire sector. I assess the prospect of defeating the loss-of-profit exclusion at around 55–60%. If the exclusion is upheld, recovery on the lost-profit head (£742,000) would be lost, though the hire-in cost and repair heads would survive subject to the overall cap argument.

Quantum

Head of loss	Claimed	Counsel's realistic assessment
Replacement crushing hire-in	£472,000	£360,000–£472,000
Emergency repairs (cl. 9)	£86,500	£70,000–£86,500
Lost profit	£742,000	£0–£742,000 (turns on cl. 14.2)
Management / haulage / demurrage	£119,500	£60,000–£100,000
Total claimed	**£1,420,000**	**£490,000–£1,200,000 range**

11. My central estimate of recovery, on the basis that liability is established and the loss-of-profit exclusion is partly successful, is in the region of £750,000–£950,000 plus interest and costs. If the exclusion is wholly defeated, recovery approaches the full claim; if it is wholly upheld, recovery falls to around £490,000.

Settlement and next steps

12. This is a case which ought to settle. I would advise Maybrook to make a Part 36 offer once Mr Penrith's report is finalised, pitched at around £820,000, which sits within the realistic range and applies costs pressure. A mediation after exchange of expert evidence is sensible.

13. For directions, Maybrook should press for early disclosure of Helmsworth's build and quality-control records for the Plant and for permission for expert evidence in plant engineering.

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7 April 2026